1951

F

FAR EASTERN DEPARTMENT

JAPAN

117

F JT1022/637

FROM H.M. Consul, Tamsui

No. 48

Dated 21/6/51.

Received in Registry— 27/6/51.

Encloses full text of Chiang's press release on the J.P.T. talks with Dulles in London.

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MINUTES

C.P. (51) 87.

Th. Cl. Johnston. China Defence Dept. C. S. VII.

C.A.S. 29. VI.

(Print)

(How disposed of)

(Action completed)	(Index)
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British Consulate,
Tamsui, Formosa.

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No.48 21st June, 1951.

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Copied to: U.K.L.M.,
Tokyo No.23.

F J1022/637

F J1022/610

Sir

I have the honour to refer to my telegram No.79 of the 22nd May about the Anglo American talks in London on the subject of the Japanese peace treaty, and to enclose the full text of President Chiang's press release of 18th June.

I have the honour to be,
with the highest respect,
Sir,
Your most obedient,
humble servant.

(E.H.Jacobs-Larkcom)
Consul.

His Majesty's
Principal Secretary of State
for Foreign Affairs,
Foreign Office,
London.

British Consulate,
Tamsui, Formosa.

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(E.H.Jacobs-Larkcom)
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His Majesty's
Principal Secretary of State
for Foreign Affairs,
Foreign Office,
London.

World War II was heralded by the aggression of Japan against the Republic of China. Of all the Allies, we fought the longest. Our losses in lives and property were the greatest. In the defeat of the aggressors China made significant contribution. A treaty of peace with Japan without the participation of China is at once unrealistic and unjust.

The USSR, through the agency of her protege, the Chinese Communists, took advantage of the weakened condition of China to make further inroads of aggression. In spite of these circumstances, certain powers still chose to recognize the puppet regime at Peiping and even to question and oppose the right of participation of the Republic of China in the conclusion of a treaty of peace with Japan. From a purely legal point of view, such doubts and opposition are entirely without justification. First, the Government of the Republic of China is the Government recognized by the United Nations. Secondly, the majority of the fifty-odd governments which declared war or a state of belligerency against Japan recognize the Government of the Republic of China. Thirdly, allied bodies dealing with Japan, such as the Allied Council in Tokyo, accept the representatives of the Republic of China among its members. It is therefore obvious that the right of participation of the Republic of China in the conclusion of the treaty of peace with Japan is not subject to challenge by any one allied power or any small group of such powers.

Only through the sincere cooperation of the two neighboring Asiatic countries, China and Japan, may the future security of Asia be assured. Since V-J Day I have repeatedly stated that China would not adopt an attitude of vengeance against Japan. On various occasions, I have, both directly and indirectly, stressed the necessity of the early conclusion of a treaty of peace with Japan on the basis of a reasonably generous police. The recent efforts of the U.S. Government, despite the obstructionist tactics of the USSR, in promoting the early conclusion of peace with Japan are timely and are in accord with the policy of the Chinese Government. In its discussions with the U.S. Government, the Government of the Republic of China has exercised considerable restraint and demonstrated unstintedly its willingness to cooperate on such important questions as reparations and the security of Japan. Should the Republic of China be denied the right of equal participation in the conclusion of the treaty of peace with Japan, it would not only dishearten the people now living in Free China, but also dim the hopes of millions of mainlanders who await emancipation from Communist rule. The ultimate effect of such an unjust act will not be limited to the effectiveness of the peace treaty, but may seriously damage the traditional friendship between the Chinese and American peoples.

In view of the foregoing considerations I wish to reaffirm that the right of participation of the Republic of China in the conclusion of the treaty of peace with Japan is undeniable and that the Republic of China can only participate in the conclusion of such a treaty on an equal footing with the other allies. Any discriminatory treatment would not be acceptable.

Any instrument of peace concerning Japan concluded in violation of the position of the Government of the Republic of

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China would certainly be lacking in both moral force and legal justification, and leave an indelible blot on the history of allied cooperation in resisting aggression. Such an unrealistic peace treaty will not only fail to terminate the state of belligerency of World War II, but also add confusion to the Far Eastern situation and sow the seeds for further world disaster.

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